APPELLATE LEAVE STATEMENT OF UNDERSTANDING
NAVPERS 1050/3 (Rev. 10-2024) Supporting Directive MILPERSMAN 1050-370

Privacy Act Statement
AUTHORITY: 10 U.S.C. Section 5013, DoDI 1327.06, MILPERSMAN 1050-100, and E.O. 9397 (SSN).
PURPOSE: To identify information regarding your current and future leave address in order to grant you leave pending appellate review. The information will be used to maintain an accurate record of your location to allow for future applicable communications and for insertion in the U.S. Navy service record pertaining to you.
ROUTINE USES: Department of Defense employees involved in administering the purposes identified above.
DISCLOSURE: Mandatory

Name:	DoDID Number:

REQUEST APPELLATE LEAVE:
I understand that I will be charged ordinary leave once all accrued leave (if any) is exhausted.

MANDATORY APPELLATE LEAVE:

I request to:

☐ Take accrued leave until accrued leave is exhausted.

☐ Be paid all accrued leave.

☐ Take some of accrued leave and be paid for some of accrued leave.

Complete both address fields below and select the box to the address where all official correspondence will be forwarded while on appellate leave.

	My address while on appellate leave will be:		
☐	Address:		
	City:	State:	Zip Code:

	My permanent home address is:		
☐	Address:		
	City:	State:	Zip Code:

INT	STATEMENT OF UNDERSTANDING
	I understand that I must advise my commanding officer of any change of my leave address, permanent home address, and the address for which all official correspondence may be sent.
	I understand that I am required to keep my NAVPERS 1070/602 Dependency Application/Record of Emergency Data current.
	I understand that while on appellate leave, I am still on active duty and subject to orders of competent naval authority.
	I understand that while on appellate leave, I will be in a non-pay status.
	I understand that the appellate review process can take several months and I will remain on appellate leave until I am discharged, unless I am ordered to return for duty by proper authority to complete my service obligation; for administrative separation; or for a rehearing.
	I understand that if the convening authority approves an unsuspended punitive discharge/dismissal, I may be placed on mandatory appellate leave at the discretion of the convening authority.
	I understand that if the punitive discharge/dismissal is set aside, I may be processed for administrative separation, separated, or recalled for a hearing.
	I have been counseled on my rights concerning appellate review and have been informed that I may waive appellate review within 10 days of receipt of convening authority's action or withdraw from appellate review at a future date.
	I understand that I am not eligible to utilize Air Mobility Command for space available travel nor travel to a foreign country outside the U. S. and its territories.
	I understand that my dependents and I are eligible for medical treatment through the Uniformed Service medical treatment facilities. All civilian medical care claims are processed by Officer in Charge, Naval Office of Medical/Dental Affairs, Great Lakes, IL, 60088-5200. Telephone number is (888) 647-6676.
	Transportation allowance: For all questions regarding appellant entitlements to household goods (HHG) transportation, I understand that I will refer to Joint Travel Regulations (JTR), Uniformed Service members, and DoD Civilian Employees, Chapter 5, Part A.

I certify that I have read and understand this statement of understanding regarding appellate leave and have been provided a copy.

Member's Name:	Member's Signature:
Witness Name:	Witness Signature:
Approving Officer's Name:	Approving Officer' Signature:

POINTS OF CONTACT

ADMINISTRATIVE MATTERS:
Once on mandatory appellate leave, administrative control will shift to:
Commanding Officer
Navy and Marine Corps Appellate Leave Activity (NAMALA)
Washington Navy Yard
1325 10th Street SE Suite 303
Washington, DC 20374-5070
Phone (202) 685-0100
NAMALA will notify you of changes in your appellate leave status.

PAY MATTERS:
You will be in a non-pay status until a final resolution of your case and your pay account will be held by:
Defense Finance and Accounting Service (DFAS) Cleveland
Cleveland Center
Anthony J. Celebreeze Federal Building
1240 E. 9th Street
Cleveland, OH 44199-2055
Phone (440) 983-4534, FAX (216) 367-3580
All pay inquiries will be addressed to DFAS Cleveland.

COURT MATTERS:
Your court-martial record of trial will be forwarded to the following activity for review and final determination in your case:
Navy and Marine Corps Appellate Review Activity (Code 40)
Office of the Judge Advocate General
Washington Navy Yard, Bldg 58
1254 Charles Morris Street SE, Suite B01
Washington, DC 20374-5047

Your appellate Defense Attorney may be reached at (800) 688-4613 or (202) 685-7290